

THE POLICY CONTAINS A CLAUSE THAT MAY LIMIT THE AMOUNT PAYABLE

Effected with Lloyd's Underwriters (hereinafter called "the insurer") through Lloyd's Approved Coverholder (hereinafter called "the Coverholder")

Linx Underwriting Solutions Inc., 20 Bay Street, 21st Floor, Toronto, Ontario M5J 2N9 Canada

Insurance Broker: **Aon Reed Stenhouse Inc.** One Lombard Place, Suite 2100, Winnipeg, MB R3B 0X3
Telephone: 204.956.1070

Declarations

In consideration of the premium stated, the Insurer(s) will indemnify the Insured in accordance with the terms and conditions of this Policy and attached forms and endorsements. Insurance is provided for only those coverages for which forms and endorsements are attached and specific amounts of insurance are stated.

Insured and Policy Information

Named Insured	Acadia Construction Inc and Acadia Industries Inc. and Acadia Excavating Inc and JKC Holdings Ltd and Sully Construction Ltd and Trischuk Holdings Ltd and KCL Investments Inc and Timaskaw-Acadia Joint Venture o/b Acadia Construction Inc and Timaskaw Contracting LP and Acadia Investments Ltd. and TNL Holdings Inc. and 101276408 Sask. Ltd. and KLP Holdings Ltd. and Acadia Construction Management Ltd and Acadia Investments Ltd. and Heide Construction Ltd. and Dayne Contracting Ltd. and Acadia Pumping & Dewatering Ltd. and Acadia Investments Ltd. and Integrated Engineering Inc. (Property only), and any owned, managed, affiliated, associated, allied or subsidiary companies, corporations, entities, organizations, joint ventures, partnerships and / or limited partnerships or trusts as may now exist, as may previously have existed, or as may hereafter be constituted or acquired for which any Named Insured has a responsibility to place insurance and for which similar coverage is not specifically provided and as more fully defined in the Policy Wording and Underlying Policy Wordings	
Mailing Address	120 Prospect Road Corman Park, SK S7R 0H4	Policy No. UMX00639
Policy Status	New	
Policy Period	May 1, 2026 to May 1, 2027 both days at 12:01 a.m. Standard Time at the address of the Named Insured as stated herein	
Premium	\$57,000	
Interest	To pay on behalf of the Insured in respect of their liability arising out of their activities as defined in the wording hereon and underlying policies applicable	
Territorial Scope	Worldwide, as more fully stated in the underlying wording	
Currency	Canadian	

Important Information for Insureds**PLEASE READ ALL DOCUMENTS**

This Policy is issued and accepted subject to the following provisions, stipulations and conditions which form part of this Policy, together with other provisions, agreements, or conditions which may be endorsed or added.



Linx Underwriting Solutions Inc.

May 27, 2026

Date

Issued at Toronto, ON

For Aon's Privacy Policy, please refer to: http://www.aon.com/about-aon/attachments/canada_privacy_en.pdf

**PLEASE REFER TO THE POLICY WORDING FOR COMPLETE DETAILS OF THE COVERAGE.
THESE DECLARATIONS ARE SUBJECT TO TERMS AND CONDITIONS OF THE POLICY.**

Insurer	Interest	Premium
Lloyd's Underwriters led by Tokio Marine Kiln, Syndicate 510 Contract No. B1526CSINT2503551	75%	\$ 42,750
Convex Syndicate No 1984 Contract No. CSINT2503551	25%	\$ 14,250

To report a Claim:

All Claims in Canada are to be reported to:

linxclaims@linxunderwriting.ca

Notice of Occurrence:

Linx Underwriting Solutions Inc.
20 Bay Street, 21st Floor, Toronto, Ontario M5J 2N9 Canada

Notice of Cancellation:

Linx Underwriting Solutions Inc.
20 Bay Street, 21st Floor, Toronto, Ontario M5J 2N9 Canada

Umbrella Liability**Limit of Liability**

The limit of the Insurer's liability shall be as stated herein subject to all the terms of this policy having references thereto

Each Occurrence 20,000,000

Bodily Injury, Property Damage, Personal Injury, Advertising Liability Single Limit any one occurrence or claims made basis all as defined, or any combination thereof

Aggregate for Each Annual Period 20,000,000

In the aggregate annually in respect of Products Liability/Completed Operations Liability and where aggregated in the underlying Policy(ies) other than in respect of General Third Party/Public Liability where the indemnity provided by this Policy shall apply to any one occurrence even if the limit of the underlying policies applies on an aggregate basis

Self Insured Retention 10,000**Schedule of Underlying Insurance**

Coverage	Commercial General Liability
- Underlying Policy No.	TBA
- Underlying Insurer	CNA
- Limit of Liability	5,000,000
- Annual Aggregate, Products and Completed Operations	5,000,000
- Tenants Legal Liability	2,000,000
- Forest Fire Fighting Expense	2,000,000
- Policy Period: May 1, 2026 to May 1, 2027	

Coverage	Commercial General Liability
- Underlying Policy No.	T30438440-0
- Underlying Insurer	SGI Canada A Division of SGI
- Limit of Liability	5,000,000
- Policy Period: May 1, 2026 to May 1, 2027	

Coverage	Commercial General Liability
- Underlying Policy No.	T-32189631
- Underlying Insurer	SGI Canada A Division of SGI
- Limit of Liability	5,000,000
- Policy Period: February 15, 2026 to February 15, 2027	

No coverage is granted in the Policy hereon for coverage aspects that are specifically sub-limited in underlying policies

Conditions

As per wording attached and to follow terms and conditions of underlying policies

Choice of Law and Jurisdiction

Any dispute between the Insured and the Insurers relating to this Policy shall be governed by and construed in accordance with the laws of the Province of Saskatchewan.

Each party agrees to submit to the exclusive jurisdiction of the Courts of the Province of Saskatchewan.

FORMS ATTACHED**Lloyd's Clauses**

- Sanctions Limitation Clause LMA3100A
- Service of Suit Clause (Canada) LMA5028B
- Several Liability Notice LSW1001
- Notice Concerning Personal Information LSW1543E
- Identification of Insurer / Action Against Insurer LSW1548D
- Code of Consumer Rights and Responsibilities LSW1565C
- Lloyd's Underwriters' Policyholders' Complaint Protocol LSW1542F
- Statutory Conditions (Alberta, British Columbia and Manitoba) (amended) LSW1814 / LSW1815 / LSW1851
- Canada Subscription Policy LMA5190A
- Subscription Policy LSW1554
- Quebec Amendatory Endorsement
- English Language Clause
- Cancellation of Policy
- Short Rate Cancellation Table Endorsement

Policy Wording

- Umbrella Liability Policy Wording
- SPF. 7 Standard Excess Automobile Liability Coverage

Endorsements

- Specific Risk Endorsement – USA Conditions
- Radioactive Contamination and Explosive Nuclear Assemblies Exclusion Clause
- War and Civil War Exclusion Clause NMA464
- Cyber and Data Total Exclusion LMA5528A
- Communicable Disease Exclusion LMA5396
- Primary Sub-Limit Cover Exclusion
- Pyrite Exclusion
- Professional Indemnity Exclusion
- Rip and Tear Exclusion
- Endorsement No 1 – Named Insured Endorsement

SANCTIONS LIMITATION CLAUSE

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations' resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America or any applicable trade or economic sanctions, laws or regulations of any other jurisdiction.

LMA3100A

5 October 2023

SERVICE OF SUIT CLAUSE (CANADA) Action against Insurer

In any action to enforce the obligations of the Underwriters they can be designated or named as "Lloyd's Underwriters" and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney in Fact in Canada for Lloyd's Underwriters at: Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2. In addition, Quebec Legal proceedings may be served to c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montreal, Quebec H3B 4N8

LMA5028B

15 April 2022

SEVERAL LIABILITY NOTICE

The subscribing Insurers' obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations. However, in respect of Subscription policies LMA5190A to apply.

LSW1001

08/94

NOTICE CONCERNING PERSONAL INFORMATION**Introduction:**

This notice describes how Lloyd's Canada, as a data controller, collects, uses, shares and retains the personal information you provide and informs you about your choices regarding use, access and correction of your personal information. Lloyd's is committed to ensuring that any personal data it receives is protected and handled in accordance with applicable data protection laws.

Consent to Collection:

By purchasing insurance or filing a claim on a policy issued by Lloyd's Underwriters in Canada, ("Lloyd's"), a customer provides Lloyd's with their consent to the collection, use and disclosure of personal information. Consent is subject to the customer's understanding of the nature, purpose, and consequences of the collection, use or disclosure of their personal information.

How we Collect Information:

We receive policy and claim information from sources such as: Lloyd's Coverholders, Lloyd's Managing Agents, insurance brokers, claims adjusters, and other insurance intermediaries.

What personal information we process about you and how it is used:

Information is collected and stored for the following purposes:

- the communication with Lloyd's policyholders
- the underwriting of policies
- the evaluation of claims
- the analysis of business results
- purposes required or authorized by law

We collect, process, and store the following personal information about you:

- Name
- Address including postal code and country
- Policy number
- Claim number
- Claim details

We also collect information about you when you visit www.lloyds.com . Further details can be found on our online Privacy & Cookies policy at [Privacy - Lloyd's \(lloyds.com\)](http://www.lloyds.com/Privacy-Lloyds)

We will not use your personal information for marketing purposes, and we will not sell your personal information to other parties.

Who we disclose your information to:

For our general business administration, efficiency, and accuracy purposes, your personal information might be shared among certain Lloyd's offices. In order to properly manage the Lloyd's market and exercise certain supervisory powers, we may share your personal information with the Lloyd's Market Participants. For example, to successfully resolve any complaint, we will require all relevant information about your coverage and concerns.

To help manage our business and deliver services, we may share your personal information with third party service providers such as IT suppliers and business services. We require all our service providers to respect the confidentiality and security of personal data.

We may be under legal or regulatory obligations to share your personal data with Canadian courts, regulators, and law enforcement bodies.

Personal information collected by Lloyd's may be stored in several provinces within Canada, as well as sent for processing to Lloyd's offices in international locations such as the United States, the United Kingdom and the European Union. The collection, use and disclosure of personal information will be subject to the laws of those jurisdictions. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to disclosing such personal information as may be required by the laws of that jurisdiction

For the purposes described above, personal information may be disclosed to Lloyd's related or affiliated organisations or companies, their agents/mandataries, and to certain IT suppliers and business services providers. As some of these entities and Business Services Providers may be located outside of Canada, including in the United States of America or another foreign jurisdiction such as the United Kingdom and the European Union, the collection, use and disclosure of personal information will be subject to the laws of that jurisdiction. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to these entities and Business Services Providers located outside of Canada to disclosing such personal information as required by the laws of that jurisdiction.

Use or disclosure without consent or further notification

Personal information may be used for a purpose other than those for which it was originally collected, without the consent, in the following situations:

- Legitimate business purposes: When it is necessary for the supply or delivery of a product or the provision of a service you have requested. We may also be required to share information to investigate allegations of fraud; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable laws.
- Interest of the individual: When it is clearly used for your benefit.
- Research, data analytics and AI. Only if it is used for purposes consistent with those it was collected, for study or research purposes, or for statistical purposes (where if the information has been de-identified).

Retention

We retain personal information for the purposes described above, for so long as is necessary to achieve those purposes. We will also retain information for so long as required by or regulatory obligations or by law.

Your rights

You have certain rights as an individual which you can exercise in relation to the information we hold about you. If you make a request to exercise any of your rights, we reserve the right to ask you for a proof of your identity. We aim to acknowledge your request as soon as possible and will address your query within one month from your request.

You have the following rights:

The right to access

You are entitled to a confirmation to how we are processing your data, a copy of your data, and information about the purposes of processing, who do we disclose it to, whether we transfer it abroad and how we protect it, how long we keep it for, what rights you have, where we got your data from and how you can make a complaint.

We may have to decline a request due to legal restrictions. This could include, but are not limited to:

- the information is subject to solicitor/client privilege,
- providing the information would reveal personal information about a third party, or
- providing the information could compromise the investigation of a claim.

The right to rectification

If you believe the personal information we hold about you is inaccurate or incomplete, you can request for it to be rectified.

The right to be forgotten

If you withdraw your consent, terminate a contract with us or you believe the personal information is no longer necessary for the purposes for which it was collected, you may request your data to be deleted. However, this will need to be balanced against other factors. For example, there may be certain regulatory obligations which may prevent us from completing your request.

The right to data portability

If we collected your information under a contract or your consent, you can request from us to transfer your personal information to provide it to another third party of your choice.

The right to withdraw consent

If we processed your personal information under your consent, you can withdraw consent to the communication or use of the information collected; assuming it is no longer needed for the purposes it was collected.

How to access your information and/or contact us

For further information about Lloyd's management of personal information or to request, access, corrections, deletion, or to make a complaint, please contact:

Lloyd's Underwriters
Attention: Nicole Seymour, Privacy Officer
Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,
P.O. Box 51 Toronto, Ontario M5J 2J2
Tel: 1-416-360-1512
E-mail: LloydsCanada@lloyds.com

08/23
LSW1543E

IDENTIFICATION OF INSURER / ACTION AGAINST INSURER

This insurance has been effected in accordance with the authorization granted to the Coverholder by the Underwriting Members of the Syndicates whose definitive numbers and proportions are shown in the Table attached to Agreement No. **B1526CSINT2503551** (hereinafter referred to as "the Underwriters"). The Underwriters shall be liable hereunder each for his own part and not one for another in proportion to the several sums that each of them has subscribed to the said Agreement.

In any action to enforce the obligations of the Underwriters they can be designated or named as "Lloyd's Underwriters" and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney In Fact in Canada for Lloyd's Underwriters at: Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2. In addition Quebec Legal proceedings may be served to: c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montréal, Québec H3B 4N8.

NOTICE

Any notice to the Underwriters may be validly given to the Coverholder.

In witness whereof this policy has been signed as authorized by the Underwriters, by **Linx Underwriting Solutions Inc.**

Per



The Insured is requested to read this policy, and if incorrect, return it immediately for alteration.

In the event of an occurrence likely to result in a claim under this insurance, immediate notice should be given to the Coverholder whose name and address appears above. All inquiries and disputes are also to be addressed to this Coverholder.

For the purpose of the Insurance Companies Act (Canada), this Canadian Policy was issued in the course of Lloyd's Underwriters' insurance business in Canada.

LSW1548D
15 April 2022

CODE OF CONSUMER RIGHTS AND RESPONSIBILITIES

Insurers (including Lloyd's Underwriters), along with the brokers and agents who sell home, auto and business insurance are committed to safeguarding your rights both when you shop for insurance and when you submit a claim following a loss. Your rights include the right to be informed fully, to be treated fairly, to timely complaint resolution, and to privacy. These rights are grounded in the contract between you and your insurer and the insurance laws of your province. With rights, however, come responsibilities including, for example, the expectation that you will provide complete and accurate information to your insurer. Your policy outlines other important responsibilities. Insurers and their distribution networks, and governments also have important roles to play in ensuring that your rights are protected.

Right to Be Informed

You can expect to access clear information about your policy, your coverage, and the claims settlement process. You have the right to an easy-to-understand explanation of how insurance works and how it will meet your needs. You also have a right to know how insurers calculate price based on relevant facts. Under normal circumstances, insurers will advise an insurance customer or the customer's intermediary of changes to, or the cancellation of a policy within a reasonable prescribed period prior to the expiration of the policy, if the customer provides information required for determining renewal terms of the policy within the time prescribed, which could vary by province, but is usually 45 days prior to expiry of the policy.

You have the right to ask who is providing compensation to your broker or agent for the sale of your insurance. Your broker or agent will provide information detailing for you how he or she is paid, by whom, and in what ways.

You have a right to be told about insurers' compensation arrangements with their distribution networks. You have a right to ask the broker or agent with whom you deal for details of how and by whom it is being paid. Brokers and agents are committed to providing information relating to ownership, financing, and other relevant facts.

Responsibility to Ask Questions and Share Information

To safeguard your right to purchase appropriate coverage at a competitive price, you should ask questions about your policy so that you understand what it covers and what your obligations are under it. You can access information through one-on-one meetings with your broker or agent. You have the option to shop the marketplace for the combination of coverages and service levels that best suits your insurance needs. To maintain your protection against loss, you must promptly inform your broker or agent of any change in your circumstances.

Right to Complaint Resolution

Insurers, their brokers and agents are committed to high standards of customer service. If you have a complaint about the service you have received, you have a right to access Lloyd's Underwriters' complaint resolution process for Canada. Your agent or broker can provide you with information about how you can ensure that your complaint is heard and promptly handled. Consumers may also contact their respective provincial insurance regulator for information. Lloyd's is a member of an independent complaint resolution office, the General Insurance OmbudService.

Responsibility to Resolve Disputes

You should always enter into the dispute resolution process in good faith, provide required information in a timely manner, and remain open to recommendations made by independent observers as part of that process.

Right to Professional Service

You have the right to deal with insurance professionals who exhibit a high ethical standard, which includes acting with honesty, integrity, fairness and skill. Brokers and agents must exhibit extensive knowledge of the product, its coverages and its limitations in order to best serve you.

Right to Privacy

Because it is important for you to disclose any and all information required by an insurer to provide the insurance coverage that best suits you, you have the right to know that your information will be used for the purpose set out in the privacy statement made available to you by your broker, agent or insurance representative. This information will not be disclosed to anyone except as permitted by law. You should know that Lloyd's Underwriters are subject to Canada's privacy laws - with respect to their business in Canada.

10/12

LSW1565C

LLOYD'S UNDERWRITERS' POLICYHOLDERS' COMPLAINT PROTOCOL

Lloyd's strives to enhance your customer experience with us through superior service and innovative insurance products.

We have developed a formal complaint handling protocol in accordance with the Insurance Companies Act of Canada to ensure your concerns as our valued customer are addressed expeditiously by our representatives. This protocol will assist you in understanding the steps we will undertake to help resolve any dispute which may arise with our product or service. All complaints will be handled in a professional manner. All complaints will be investigated, acted upon, and responded to in writing or by telephone by a Lloyd's representative promptly after the receipt of the complaint. If you are not satisfied with our products or services, you can take the following steps to address the issue:

- Firstly, please contact the broker who arranged the insurance on your behalf about your concerns so that he or she may have the opportunity to help resolve the situation.
- If your broker is unable to help resolve your concerns, we ask that you provide us in writing an outline of your complaint along with the name of your broker and your policy number.

Please forward your complaint to:

Lloyd's Underwriters

Attention: Complaints Officer:
Royal Bank Plaza South Tower
200 Bay Street, Suite 2930, P.O. Box 51
Toronto, Ontario, M5J 2J2
Tel: 1-877-455-6937 - Fax: (514) 861-0470
E-mail: info@lloyds.ca

Your complaint will be directed to the appropriate business contact for handling. They will write to you within two business days to acknowledge receipt of your complaint and to let you know when you can expect a full response. If need be, we will also engage internal staff in Lloyd's Policyholder and Market Assistance Department in London, England, who will respond directly to you, and in the last stages, they will issue a final letter of position on your complaint.

In the event that your concerns are still not addressed to your satisfaction, you have the right to continue your pursuit to have your complaint reviewed by the following organizations:

General Insurance OmbudService (GIO) assists in the resolution of conflicts between insurance customers and their insurance companies. The GIO can be reached at:

Toll free number: 1-877-225-0446
www.giocanada.org

For Quebec clients:

Autorité des marchés financiers (AMF). The regulation of insurance companies in Quebec is administered by the AMF. If you remain dissatisfied with the manner in which your complaint has been handled, or with the results of the complaint protocol, you may send your complaint to the AMF who will study your file and who may recommend mediation, if it deems this action appropriate and if both parties agree to it. The AMF can be reached at:

Toll Free: 1-877-525-0337
Québec: (418) 525-0337
Montréal: (514) 395-0311
www.lautorite.qc.ca

If you have a complaint specifically about Lloyd's Underwriters' complaints handling procedures you may contact the FCAC.

Financial Consumer Agency of Canada (FCAC) provides consumers with accurate and objective information about financial products and services, and informs Canadians of their rights and responsibilities when dealing with financial institutions. FCAC also ensures compliance with the federal consumer protection laws that apply to banks and federally incorporated trust, loan and insurance companies. The FCAC does not get involved in individual disputes. The FCAC can be reached at:

427 Laurier Avenue West, 6th Floor, Ottawa ON K1R 1B9
Services in English: 1-866-461-FCAC (3222)
Services in French: 1-866-461-ACFC (2232)
www.fcac-acfc.gc.ca

10/20
LSW1542F

STATUTORY CONDITIONS
(Alberta, British Columbia and Manitoba)
(amended)

Property of others

1. The insurer is not liable for loss or damage to property owned by a person other than the insured unless
 - (a) otherwise specifically stated in the contract, or
 - (b) the interest of the insured in that property is stated in the contract.

Change of interest

2. The insurer is liable for loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

Material change in risk

3. (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is
 - (a) material to the risk, and
 - (b) within the control and knowledge of the insured.
- (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.
- (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may
 - (a) terminate the contract in accordance with Statutory Condition 4,
or
 - (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.
- (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3) (b) of this condition, the contract is terminated at that time and Statutory Condition 4 (2) (a) applies in respect of the unearned portion of the premium.

Termination of insurance

4. (1) The contract may be terminated
 - (a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - (b) by the insured at any time on request.

- (2) If the contract is terminated by the insurer,
 - (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- (3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
- (4) The 15 day period referred to in subparagraph (1) (a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

Notice

- 5. (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.
- (2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

01/07/12
LSW1814 (amended) / LSW1815 (amended)

17/10/14
LSW1851 (amended)

Canada Subscription Policy

Lloyd's endorsement (only to be used in conjunction with LSW 1554 or an alternative subscription policy document containing the attributes of LSW 1554)

PLEASE NOTE – This notice contains important information – PLEASE READ CAREFULLY

Whereas the Subscription Policy ("the Policy") has been entered into by the Coverholder in accordance with the authorization granted to the Coverholder by the underwriting members ("the members") of the Lloyd's syndicates as shown in the List of Subscribing Companies (and where the List of Subscribing Companies also notes the identity of the Coverholder);

Whereas the liability of each insurer under the Policy is several and not joint with other insurers party to the Policy;

The following additional provisions shall apply in respect of the participation of the members to the Policy. The following provisions are in addition to and not in substitution for the provisions, terms and condition as set out in the Policy (including any amendment or endorsement thereto).

Several liability

1. The proportion of liability under the Policy underwritten by the members of a Lloyd's syndicate (being the total of the proportions underwritten by all the members of the syndicate taken together) is as provided for in the binding authority agreement number shown in the List of Subscribing Companies, or which may be obtained on application to the Coverholder whose name is also noted in the List of Subscribing Companies.
2. In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total being the total of the proportions of the total shown for the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members or other insurers. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite the Policy. The business address of each member is Lloyd's, One Lime Street, EC3M 7HA, United Kingdom. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained in writing to Market Services, Lloyd's at the above address.
3. Although reference is made at various points in this endorsement to "the Policy" in the singular, where the circumstances so require this should be read as a reference to Policies in the plural.

Action Against Insurer

4. In any action to enforce the obligations of the members they can be designated or named as "Lloyd's Underwriters" and such designation shall be binding on the members as if they had been individually named as defendant. Service of such proceedings may be validly made upon the attorney-in-fact in Canada for Lloyd's Underwriters, whose address for service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2.

Notice

5. Any notice to the members may be validly given to the Coverholder whose signature and name appear in the List of Subscribing Companies.

LMA5190A
01 October 2020

SUBSCRIPTION POLICY

IN CONSIDERATION OF THE INSURED having paid or agreed to pay each of the INSURERS named in the List of Subscribing Companies forming part hereof, or to INSURERS whose names are substituted therefor or added thereto by endorsement, hereinafter called "THE INSURERS", the Premium set against its name in the List of Subscribing Companies (attached hereto),

THE INSURERS SEVERALLY AND NOT JOINTLY agree, each for the Sum(s) Insured or Percentage(s) and for the Coverage(s) Insured set against its name in the List of Subscribing Companies, and subject always to the terms and conditions of this Policy, that if a loss occurs for which insurance is provided by this Policy at any time while it is in force, they will indemnify the INSURED against the loss so caused; the liability of each insurer individually for such loss being limited to that proportion of the loss payable according to the terms and conditions of this Policy which the Sum Insured or the amount corresponding to the Percentage set against its name in the List of Subscribing Companies, or such other sum or percentage as may be substituted therefor by endorsement, bears to the total of the sums insured or of the amounts corresponding to the percentages of the sums insured respectively set out against the coverage concerned on the Declarations page(s).

That as regards each item of property insured which is lost or damaged at any time while this Policy is in force by a peril for which insurance is provided by the terms and conditions of this Policy, the liability of each Insurer individually shall be limited to whichever is the least of:

- (a) that proportion of the actual cash value of the property at the time of the loss, destruction or damage which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual Insurer's proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this Policy in respect of that property against that peril, or
- (b) that proportion of the interest of THE INSURED in the property which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual insurer's proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this policy in respect of that property against that peril, or
- (c) that proportion of the limit of insurance stipulated in respect of the property lost, destroyed or damaged which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual insurer's proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this Policy in respect of that property against that peril,

Provided however, that where the insurance applies to the property of more than one person or interest THE INSURERS' total liability for loss sustained by all such persons and interests shall be limited in the aggregate to the specified limit or limits of liability.

If this Policy contains a Co-Insurance Clause or a Guaranteed Amount (Stated Amount) Clause, and subject always to the limit of liability of each Insurer corresponding to the percentage of the sum insured by this Policy as set out above, no Insurer shall be liable for a greater proportion of any loss or damage to the property insured, than the sum insured by such Insurer bears to:

- (a) that percentage, stated in the Co-Insurance Clause, of the actual cash value of the said property at the time of loss, or
- (b) the Guaranteed Amount (Stated Amount) of total insurance stated in the Guaranteed Amount (Stated Amount) Clause, as the case may be.

If the insurance under this Policy is divided into two or more items, the foregoing shall apply to each item separately.

Wherever in this Policy, or in any endorsement attached hereto, reference is made to "The Company", "The Insurer", "This Company", "we", "us", or "our", reference shall be deemed to be made to each of the Insurers severally.

This policy is made and accepted subject to the foregoing provisions, and to the other provisions, stipulations and conditions contained herein, which are hereby specially referred to and made a part of this Policy, as well as such other provisions, agreements or conditions as may be endorsed hereon or added hereto.

IN WITNESS WHEREOF THE INSURERS through their representative(s) duly authorized by them for this purpose have executed and signed this Policy.

Property/Liability/Other

07/05
LSW1554

QUEBEC AMENDATORY ENDORSEMENT**QUEBEC CIVIL CODE AMENDMENT
(from CICC077 12-03)**

Where this policy is required to be interpreted by the law of the Province of Quebec then the policy provisions shall be deemed to be amended to comply with the applicable provisions of the Quebec Civil Code, but only to the extent necessary to comply with requirements of the Quebec Civil Code and only to the extent that the Quebec Civil Code in law governs this contract.

Every action or proceeding against an insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the Quebec Civil Code.

English Language Clause

The Named Insured, for itself and all Insureds, consents to this Policy and all notices required hereunder being drafted and delivered in the English language

L' assure, en son nom propre et au nom de tous les assures, consent expressément a ce que le present contrat et tous les avis exigés par les presentes soient rédigés et transmis en anglais.

CANCELLATION OF POLICY No. UMX00639

If you wish to cancel this Policy, please sign the following and return this document to your broker/agent.
In consideration of a RETURN PREMIUM to be calculated as provided in the policy conditions and to be paid by the Insurer(s) to the Insured, this Policy is hereby cancelled.

Date

Signature of Insured

PAYEE, if any must discharge interest by signing this form

Signature of Payee

SHORT RATE CANCELLATION TABLE ENDORSEMENT

NOTWITHSTANDING anything to the contrary contained herein and in consideration of the premium for which this insurance is written, it is agreed that in the event of cancellation thereof by the Assured the earned premium shall be computed as follows:

Short Rate Cancellation Table**A. For insurance written for one year:**

Days Insurance in force	Percent of One Year Premium	Days Insurance in force	Percent of One Year Premium	Days Insurance in force	Percent of One Year Premium
0-1	5	95 - 98	37	219 - 223	69
2	6	99 - 102	38	224 - 228	70
3 - 4	7	103 - 105	39	229 - 232	71
5 - 6	8	106 - 109	40	233 - 237	72
7 - 8	9	110 - 113	41	238 - 241	73
9 - 10	10	114 - 116	42	242 - 246 (8 mos)	74
11 - 12	11	117 - 120	43	247 - 250	75
13 - 14	12	121 - 124(4 mos)	44	251 - 255	76
15 - 16	13	125 - 127	45	256 - 260	77
17 - 18	14	128 - 131	46	261 - 264	78
19 - 20	15	132 - 135	47	265 - 269	79
21 - 22	16	136 - 138	48	270 - 273(9 mos)	80
23 - 25	17	139 - 142	49	274 - 278	81
26 - 29	18	143 - 146	50	279 - 282	82
30 - 32 (1 mo)	19	147 - 149	51	283 - 287	83
33 - 36	20	150 - 153 (5 mos)	52	288 - 291	84
37 - 40	21	154 - 156	53	292 - 296	85
41 - 43	22	157 - 160	54	297 - 301	86
44 - 47	23	161 - 164	55	302 - 305(10 mos)	87
48 - 51	24	165 - 167	56	306 - 310	88
52 - 54	25	168 - 171	57	311 - 314	89
55 - 58	26	172 - 175	58	315 - 319	90
59 - 62 (2 mos)	27	176 - 178	59	320 - 323	91
63 - 65	28	179 - 182(6 mos)	60	324 - 328	92
66 - 69	29	183 - 187	61	329 - 332	93
70 - 73	30	188 - 191	62	333 - 337(11 mos)	94
74 - 76	31	192 - 196	63	338 - 342	95
77 - 80	32	197 - 200	64	343 - 346	96
81 - 83	33	201 - 205	65	347 - 351	97
84 - 87	34	206 - 209	66	352 - 355	98
88 - 91 (3 mos)	35	210 - 214(7 mos)	67	356 - 360	99
92 - 94	36	215 - 218	68	361 - 366	100

B. For insurance written for more or less than one year:

1. If insurance has been in force for 12 months or less, apply the standard short rate table for annual insurances to the full annual premium determined as for an insurance written for a term of one year.
2. If insurance has been in force for more than 12 months:
 - a. Determine full annual premium as for an insurance written for a term of one year.
 - b. Deduct such premium from the full insurance premium, and on the remainder calculate the pro rata earned premium on the basis of the ratio of the length of time beyond one year the insurance has been in force to the length of time beyond one year for which the insurance was originally written.
 - c. Add premium produced in accordance with terms (a) and (b) to obtain earned premium during full period insurance has been in force.

ATTACHED TO AND FORMING PART OF POLICY NUMBER: UMX00639
UMBRELLA LIABILITY POLICY

In consideration of the payment of the premium and subject to the limits of liability, exclusions, definitions, conditions and other terms of this policy, the Insurer agrees with the Insured named in the Risk Details as follows:

Insuring Agreements

I. COVERAGE

To pay on behalf of the Insured that portion of the Ultimate Net Loss or in excess of the retained limit, as hereinafter defined, which the Insured shall become legally obligated to pay as damages because of (A) Bodily Injury, (B) Property Damage, (C) Personal Injury or (D) Advertising Liability, as defined herein, caused by an occurrence, or claims made, all as defined herein.

The provision of Automobile Insurance by this policy shall be subject to all the terms and conditions of the Excess Automobile S.P.F. No. 7 Endorsement attached to and forming part of this policy.

II. DEFENCE, SETTLEMENT, SUPPLEMENTARY PAYMENTS

With respect to any occurrence not covered by underlying insurance described in the Risk Details or any other underlying insurance collectible by the Insured but covered by the terms and conditions of this policy, except for the amount of Retained Limit specified in the Risk Details, the Insurer will:

- A. defend any suit against the Insured alleging liability insured under the provisions of this policy and seeking recovery for damages on account thereof even if such suit is groundless, false or fraudulent, but the Insurer shall have the right to make such investigation, negotiation and settlement of any claim or suit as may be deemed expedient by the Insurer;
- B. pay all premiums on bonds to release attachments for an amount not in excess of the applicable limit of liability of this policy, all premiums on appeal bonds required in any such defended suit, but without any obligation to apply for or furnish such bonds; all costs taxed against the Insured in any such suit, all expenses incurred by the Insurer and all interest accruing after entry of judgment until the Insurer has paid, tendered or deposited in court that part of the judgment that does not exceed the limit of the Insurer's liability thereon;
- C. reimburse the Insured for all reasonable expenses incurred at the Insurer's request (including actual loss of wages or salary, but not loss of other income, not to exceed CAD1,000 per day) because of their attendance at hearings or trials at such request.

The Insurer agrees to pay the amounts incurred under this Insuring Agreement II, except in settlement of claims and suits, in addition to the limit of liability stated in the Risk Details, and such Defence and Supplementary Payments shall not be included as part of the Ultimate Net Loss as defined in the policy.

In jurisdictions where the Insurer may be prevented by law or otherwise from carrying out this agreement, the Insurer shall pay any expense incurred by the Insured with its written consent in accordance with this agreement.

The Insured shall promptly reimburse the Insurer (excepting Defence Costs) for any amount of Ultimate Net Loss paid on behalf of the Insured within the retained limit specified in the Risk Details.

III. LIMIT OF LIABILITY - RETAINED LIMIT

- A. The Insurer shall be liable only for that portion of the Ultimate Net Loss excess of the Insured's retained limit defined as either;
 - 1. the total of the applicable limits of the underlying policies listed in the Schedule of Underlying Insurance in the Risk Details, and the applicable limits of any other underlying insurance providing coverage to the Insured; or

2. the amount stated in the Risk Details as the result of any occurrence not covered by such underlying policies of insurance;

and then up to an amount not exceeding the amount as stated in the Risk Details as the result of any one occurrence,

- B. In the event of reduction or exhaustion of the aggregate limits of liability under said Underlying Insurance by reason of losses paid thereunder during this policy period, this policy shall, subject to its terms and conditions and the limits of liability stated in the Risk Details:

1. in the event of reductions, pay excess of the reduced underlying insurance, or
2. in the event of exhaustion of the limits of liability, continue in force as underlying insurance.

- C. There is no limit to the number of occurrences during the policy period for which claims may be made, except that the Insurer's total limit of liability arising out of:

- a. the Products Hazard or the Completed Operations Hazard, or both combined, or
- b. any other hazard insured with an aggregate limit in an Underlying Insurance other than General Third Party/Public Liability where the indemnity provided by this Policy shall apply to any one occurrence even if the limit of the underlying policies applies on an aggregate basis,

shall not exceed the amount stated in the Risk Details as respects all occurrences during each annual period commencing with the effective or anniversary date of this policy.

- D. For the purpose of determining the limit of the Insurer's liability, all (A) Bodily Injury, (B) Property Damage, (C) Personal Injury or (D) Advertising Liability arising out of continuous or repeated exposure to substantially the same general conditions shall be considered as arising out of one occurrence. With respect to Advertising Liability, all damages involving the same injurious material or act, regardless of the frequency or repetition thereof, the number and kind of media used and the number of claimants, shall be deemed to arise out of one occurrence.

IV. POLICY TERRITORY

This policy applies to (A) Bodily Injury, (B) Property Damage, (C) Personal Injury and (D) Advertising Liability occurring anywhere during the policy period and or the claims made provisions herein.

V. LIBERALIZATION CLAUSE

Any coverage provided under any scheduled underlying policy at the full limit of liability is covered under this policy and supersedes any exclusions herein, except for the following:

- (a) The nuclear energy exclusion;
- (b) Any exclusion or limitation contained in any endorsement attached to this policy.

VI. OPTION TO PURCHASE AN EXTENDED REPORTING PERIOD

If the scheduled underlying Insurance Policy is written on a claims made basis is cancelled or not renewed (other than for nonpayment of premium) this policy will offer an Extended Reporting Period.

To exercise this option the First Named Insured must request in writing within 30 days of the cancellation or non renewal of the underlying claims made policy.

The cover afforded by this policy will follow the terms and conditions of the underlying Policy(s).

Exclusions**THIS POLICY SHALL NOT APPLY:**

- A. to any obligation for which the Insured or any carrier as their Insurer may be held liable under any Worker's Compensation, Occupational Disease, Unemployment Compensation, or Disability Benefits Law, or under any similar law, but this exclusion shall not apply to liability claims arising out of the legal liability imposed by the Insured at common law as extended by statute for injuries to employees of the Insured or of others assumed by the Named Insured under contract or agreement
- B. to the loss of use of tangible property which has not been physically injured or destroyed, resulting from:
1. a delay in or lack of performance by or on behalf of the Insured of any contract or agreement; or
 2. the failure of the Insured's products or work performed by or on behalf of the Insured to meet the level of performance, quality, fitness or durability warranted or represented by the Insured; but this exclusion does not apply to loss of use of other tangible property resulting from the sudden and accidental physical injury to or destruction of the Insured's products or work performed by or on behalf of the Insured after such products or work have been put to use by any person or organization other than an Insured;
- C. to Property Damage to:
- (i) property owned or occupied by or rented to the "Insured" property held by the "Insured" for sale or property entrusted to the "Insured" for storage or safekeeping.
 - (ii) property while on premises owned by or rented to the "Insured" for the purpose of having operations performed on such property by or on behalf of the "Insured"
 - (iii) tools or equipment while being used by the "Insured" in performing their operations;
 - (iv) property in the custody of the "Insured" which is to be installed, erected, or used in construction by the "insured"
 - (v) that particular part of any property, not on premises owned by or rented to the "Insured"
 - (a) upon which operations are being performed by or on behalf of the "Insured" at the time of the damage thereto or destruction thereof, arising out of such operations; or
 - (b) out of which any damage or destruction arises; or
 - (c) the restoration, repair or replacement of which has been made necessary by reason of faulty workmanship thereon by or on behalf of the "Insured";
 - (vi) That particular part of the "Insured's" products out of which an occurrence arises;
 - (vii) in respects to products and completed operations that particular part of work performed by the "Insured" out of which an occurrence arises due to faulty workmanship. This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on behalf of the "Insured" by a Sub-Contractor.

Subsections (ii), (iii), and (iv) of this exclusion shall not apply to liability assumed under a sidetrack agreement, a crossing agreement, a right of way, or other like privileges pertaining to a railway property or the use of elevators or escalators at premises owned, rented or controlled by the "Insured", or liability assumed under any easement or agreement required by a Municipal by-law.

- D. to damages claimed for the withdrawal, inspection, repair, replacement or loss of use of the Insured's products or work completed by or for the Insured or of any property of which such products or work form a part, if such product, work or property are withdrawn from the market or from use by anyone because of any known or suspected defect or deficiency therein;
- E. to liability of any employee with respect to Personal Injury to another employee of the same employer injured in the course of such employment unless insurance is provided by a policy listed in the Schedule of Underlying insurance and then not for broader coverage than is afforded to such employee by that policy;
- F. under Advertising Liability, to claims made against the Insured:
 - 1. for failure of performance of contract;
 - 2. for infringement of trade mark or trade name, but this shall not relate to titles or slogans;
 - 3. for incorrect description of any article or commodity;
 - 4. for mistake in advertised prices;

G. POLLUTION:

- A) to "Bodily injury", "property damage" or "personal injury" arising out of the actual, alleged or threatened discharge, dispersal, release or escape of pollutants:
 - 1) At or from premises owned, rented or occupied by an Insured;
 - 2) At or from any site or location used by or for an Insured or others for the handling, storage, disposal, processing or treatment of waste;
 - 3) Which are at any time transported, handled, stored, treated, disposed of or processed as waste by or for an Insured or any person or organization for whom the Insured may be legally responsible; or
 - 4) At or from any site or location on which an Insured or any contractors or subcontractors working directly or indirectly on behalf of an Insured are performing operations:
 - a) if the pollutants are brought on or to the site or location in connection with such operations; or
 - b) if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize the pollutants.
- B) To any loss, cost, or expense arising out of any governmental direction or request that an Insured test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants.

This exclusion does not apply to heat, smoke or fumes from a hostile fire. As used in this exclusion, a "hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.

Sub-paragraphs 1) and 4)a) of paragraph A) of this exclusion do not apply to "bodily injury" or "property damage" caused by:

- i) an unexpected or unintentional discharge, dispersal, release or escape of pollutants provided such discharge, dispersal, release or escape of pollutants:
 - a) results in the injurious presence of pollutants in or upon land, the atmosphere, drainage or sewage system, watercourse or body of water; and

- b) is detected within 120 hours after the commencement of the discharge, dispersal, release or escape; and
 - c) is reported to the Insurer within 120 hours of being detected; and
 - d) does not occur in a quantity or with a quality that is routine or usual to the business of the Insured.
- H. to Bodily Injury or Property Damage arising out of the ownership of:
 - 1. any watercraft over fifteen (15) meters;
 - 2. any aircraft owned by the Insured or rented to the Insured without a crew;however, this exclusion shall not apply If such watercraft or aircraft is loaned or rented to or hired with crew by or on behalf of the Named Insured;
- I. to any liability of the Insured directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalization or requisition or destruction of or damage to property by or under the order of any government or public or local authority;
- J.
 - 1. under Insuring Agreements 1(A) and 1(B), to injury, sickness, disease, death or destruction:
 - (a) with respect to which an Insured under the policy is also an Insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters or Nuclear Insurance Association of Canada, or would be an Insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - (b) resulting, from the hazardous properties of nuclear material and with respect to which (i) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954. or any law amendatory thereof, or (ii) the Insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America or any agency thereof, under any agreement entered into by the United States of America or any agency thereof, with any person or organization;
 - 2. under any Medical Payments Coverage, or under any Supplementary Payments provision relating to immediate medical or surgical relief, to expenses incurred with respect to bodily injury, sickness, disease, or death resulting from hazardous properties of nuclear material and arising out of the operation of a nuclear facility by any person or organization;
 - 3. under any Liability Coverage, to injury, sickness, disease, death or destruction resulting from the hazardous properties of nuclear material, if
 - (a) the nuclear material (i) is at any nuclear facility owned by, or operated by or on behalf of, an Insured, or (ii) has been discharged or dispensed there from; or
 - (b) the nuclear material is contained in spent fuel or waste at any time possessed, handled, used, processed, stored, transported or disposed of by or on behalf of an Insured; or
 - (c) the injury, sickness, disease, death, or destruction arises out of the furnishing by an Insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any nuclear facility, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (c) applies only to injury to or destruction of property at such nuclear facility.

4. As used in this exclusion:

- (a) "hazardous properties" include radioactive, toxic or explosive properties;
- (b) "nuclear material" means source material, special nuclear material or by-product material;
- (c) "source material", "special nuclear material" and "by-product material" have meaning given them in the Atomic Energy Act of 1954 or in any law amendatory thereof;
- (d) "spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a nuclear reactor;
- (e) "waste" means any waste material (i) containing by-product material and (ii) resulting from the operation by any person or organization of any nuclear facility included within the definition of nuclear facility under paragraph (f)(i) or (ii) thereof;
- (f) "nuclear facility" means:
 - (i) any nuclear reactor,
 - (ii) any equipment or device designed or used for (1) separating the isotopes of uranium or plutonium, (2) processing or utilizing spent fuel, or (3) handling, processing or packaging waste,
 - (iii) any equipment or device used for the processing, fabricating or alloying of special nuclear material if at any time the total amount of such material in the custody of the Insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235,
 - (iv) any structure, basin, excavation, premises or place prepared or used for storage or disposal of waste, and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations;
- (g) "nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self supporting chain reaction or to contain a critical mass of fissionable material;
- (h) with respect to injury to or destruction of property, the word "injury" or "destruction" includes all forms of radioactive contamination of property.

K. DATA/COMPUTER VIRUSES

Any "bodily injury", "property damage" or "personal and advertising injury" resulting from "Data / Computer Virus".

"Data /Computer Virus" means any of the pieces of computer code described below that is introduced or loaded into the memory or storage of any computer component, equipment, program or system and that destroys, alters, contaminates or degrades the integrity, quality or performance of data or any computer application software, computer network or computer operating system and related software:

- a) Any piece of computer code that is not part of either the original program or computer code; any updates, modifications or enhancements to or customization of the original program or code; or any purchased add-ins, patches, plug-ins or other software designed to work with or enhance the original program or computer code or any of its subsequent updates, modifications or enhancements.
- b) Any piece of computer code that is part of such program, code or software but was deliberately and maliciously added to, included in or embedded into it.

L. MOLD, FUNGI AND BACTERIA

- a) Any "bodily injury", "property damage", "personal and advertising injury" or voluntary medical expense that results from the actual, alleged or threatened absorption, ingestion or inhalation of "mold, other fungi or bacteria", however caused.

- b) Any "bodily injury", "property damage", "personal and advertising injury" or voluntary medical expense that results from the existence, presence, spread, reproduction, discharge or growth of "mold, other fungi or bacteria", however caused.

This exclusion applies:

- i) To damages for which the "Insured" may be held liable in any capacity; and
 - ii) To any obligation of the "Insured" to share damages with or repay someone else who must pay damages.
- c) Any loss, cost or expense resulting from any:
- i) Supervision, instructions, recommendations, warnings or advice given in connection with "mold, other fungi or bacteria work";
 - ii) Request, demand or order that any Insured or others perform "mold, other fungi or bacteria work"; or
 - iii) Claim or suit by or for any governmental authority for damages that result from the performance of "mold, other fungi or bacteria work".

As used in this exclusion:

"Mold, other fungi or bacteria" means:

- 1) Any type or form of mold, other fungus or bacterium; or
- 2) Any mycotoxin, spore, scent or by-product that is produced, emitted or released by such mold, other fungus or bacterium.

"Mold, other fungi or bacteria work" means:

- (i) The testing for, monitoring, clean up, removing, containing, treating, detoxifying or neutralizing of any mold, other fungi or bacteria; or
- (ii) The responding to or assessing in any way the effects of any mold, other fungi or bacteria.
- (iii) This exclusion does not apply to "bodily injury", "property damage" or "personal and advertising injury" that results from mould, other fungi, or bacteria which is on or part of any of the "Insured's" products that are intended to be consumed by the public.

M. ASBESTOS:

- 1 liability directly or indirectly caused by or alleged to be caused by or contributed to in whole or in part by or arising from the existence of or exposure to asbestos and/or any asbestos containing materials
- 2 any obligation to defend any claim or suit against the Assured alleging liability resulting from 1 above nor to Insurers' liabilities for Defence or Supplementary Payments arising therefrom

Definitions

When used in this policy (including endorsements forming a part hereof):

A. INSURED means each of the following to the extent set forth below:

1. (a) the Named Insured stated in the Risk Details, or more fully described in the underlying policies, and any companies that are subsidiaries or owned or controlled by said Named Insured on the inception date of the policy;
(b) any additional companies that become subsidiaries or owned or controlled companies of said Named Insured, providing prompt notice is given to the Insurer;
2. any person or entity for which the Named Insured is responsible for arranging insurance;
3. if the Named Insured is designated in the Risk Details as a partnership or joint venture, the partnership or joint venture so designated and any partner or member thereof but only with respect to their liability as such. However, if the Named Insured is a partnership, this policy does not apply to an automobile owned by or registered in the name of a partner thereof. This policy does not apply to Bodily Injury, Property Damage, Personal Injury or Advertising Liability arising out of the conduct of any partnership or joint venture of which the Insured is a partner or member and which is not designated in this policy as a Named Insured. If the Named Insured is designated in the Risk Details as an individual, the person so designated, but only with respect to the conduct of a business of which they are the sole proprietor;
4. any person, organization, trustee or estate to whom or to which the Named Insured is obligated by virtue of a written contract to provide insurance such as is afforded by this policy, but only with respect to operations by or on behalf of the Named Insured or to the facilities of used by the Named Insured;
5. subject to the terms and conditions of this Policy, any additional Insured included in the underlying insurance, but only to the extent that insurance is available to such additional insured under such underlying insurance;
6. any partner, former partner, executive officer, director, stockholder or employee of the Named Insured, while acting in their capacity as such and any organization or proprietor with respect to real estate management for the Named Insured;
7. contract employees of the Insured while acting within the scope of their duties as such and under the terms of their contract with the Insured;
8. any social and/or recreational clubs of the employees of the Insured including all employees of such social and/or recreational club;

The inclusion or addition hereunder of more than one Insured shall not operate to increase the Insurer's limit of liability.

B. BODILY INJURY shall mean, but is not limited to:

1. bodily injury, sickness, disease, disability, shock, fright, mental anguish and mental injury, including death at any time resulting therefrom, including loss of use;

which occur, during the policy period or subject to the claims made provisions herein.

C. PERSONAL INJURY shall mean, but is not limited to:

1. false arrest, false imprisonment, wrongful eviction, wrongful detention, wrongful entry, malicious prosecution, humiliation and discrimination (unless prohibited by law);
2. libel, slander, defamation of character or invasion of rights of privacy unless arising out of Advertising Liability; and

which occur, during the policy period or subject to the claims made provisions herein.

D. PROPERTY DAMAGE shall mean (1) physical injury to or destruction of tangible property, which occurs during the policy period, including loss of use thereof at any time resulting therefrom; or (2) loss of use of tangible property which has not been physically injured or destroyed provided such loss of use is caused by an occurrence during the policy period or subject to the claims made provisions herein.

E. ADVERTISING LIABILITY shall mean liability for damage because of:

1. libel, slander or defamation of character;
2. infringement of copyright or of title or of slogan;
3. piracy or unfair competition or idea misappropriation under an implied contract;
4. invasion of the rights of privacy;

committed or alleged to have been committed during the policy period in any advertisement, publicity article, broadcast or telecast and arising out of the Named Insured's advertising activities.

F. PRODUCTS HAZARD includes Bodily Injury and Property Damage arising out of the Insured's products or reliance upon a representation or warranty with respect thereto, but only if the Bodily Injury or Property Damage occurs away from premises owned by or rented to the Insured and after physical possession has been relinquished to others.

G. INSURED'S PRODUCTS means goods or products manufactured, sold, handled or distributed by the Insured or by others trading under their name, including any container thereof (other than a vehicle), but Insured's Products shall not include a vending machine or any property other than such container, rented to or located for use of others but not sold.

H. COMPLETED OPERATIONS HAZARD includes Bodily Injury and Property Damage arising out of operations or reliance upon a representation or warranty made at any time with respect thereto, but only if the Bodily Injury or Property Damage occurs after such operations have been completed or abandoned and occurs away from premises owned by or rented to the Insured. "Operations" include materials, parts or equipment furnished in connection therewith.

Operations shall be deemed completed at the earliest of the following times:

- (1) when all operations to be performed by or on behalf of the Insured under the contract have been completed;
- (2) when all operations to be performed by or on behalf of the Insured at the site of the operations have been completed;
- (3) when the portion of the work out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or sub-contractor engaged in performing operations for a principal as part of the same project.

Operations which may require further service or maintenance work, or correction, repair, or replacement because of any defect or deficiency, but which are otherwise complete, shall be deemed completed.

The Completed Operations Hazard does not include Bodily Injury or Property Damage arising out of the

existence of tools, uninstalled equipment or abandoned or unused materials.

- I. OCCURRENCE means an accident or an event, including continuous or repeated exposure to conditions, which result in Bodily Injury, Property Damage, Personal Injury or Advertising Liability during the policy period, neither expected nor intended from the standpoint of the Insured. All Bodily Injury or Property Damage arising out of the continuous or repeated exposure to substantially the same general conditions shall be considered as arising out of one occurrence,
- J. CLAIMS MADE-If the scheduled underlying Insurance Policy is written on a claims made basis, this Policy will follow form to claims or suits of the scheduled underlying Insurance Policies subject to coverage only being provided;
- (i) for Insured losses that happen on or after the Retroactive date of the underlying Policies.
- (ii) for claims that are first made or brought in accordance with the terms of the underlying Policy(s)
- K. ULTIMATE NET LOSS - Except as provided in Insuring Agreement II, "Defence", the term "Ultimate Net Loss" shall mean the total sum which the Insured, or any company as its Insurer, or both, become obligated to pay by reason of Bodily Injury, Property Damage, Personal Injury or Advertising Liability claims, either through adjudication or compromise, and shall also include hospital, medical, and funeral charges and all sums paid or payable as salaries, wages, compensation, fees, charges, interest, expenses for doctors, nurses, and investigators and other persons, and for settlement, adjustment, investigation and defenses of claims and excluding only the salaries of the Insured or any of the underlying Insurer's permanent employees.

The Insurer shall not be liable for expenses as aforesaid when such are covered by underlying policies of insurance, whether collectible or not.

Conditions

1. **Premium.** The premium for this policy may be flat or may be subject to adjustment except that additional premiums may be required for any additional Insureds as outlined in Definition (A) "Insured", as provided in Condition 13 "Cancellation", or if this policy is subject to audit adjustment, the premium may be based upon the rating basis as set forth in the Risk Details during the policy period. Upon expiration of this policy or its termination during the policy period, or at the end of each policy year, the earned premium shall be computed as specified herein. If the earned premium is more than the advance premium paid, the Insured shall promptly pay the excess to the Insurer; if less, the Insurer shall return to the Insured the unearned portion, subject to the policy minimum premium, if any, as stated in the Risk Details.
2. **Prior Insurance and Non Cumulation of Liability.** It is agreed that if any loss covered hereunder is also covered in whole or in part under any other excess policy issued to the Insured prior to the inception date hereof, the limit of liability hereon as stated in the Risk Details shall be in excess of any amounts due to the Insured on account of such loss under such prior insurance.
3. **Severability of Interest.** In the event of claims being made by reason of Bodily Injury, Property Damage, Personal Injury or Advertising Liability suffered by one Insured herein for which another Insured herein is or may be liable this policy shall cover such Insured against whom a claim is made or may be made in the same manner as if separate policies had been issued to each Insured herein. Nothing contained herein shall operate to increase the Insurer's limit of liability as set forth in the Limit of Liability section.

4. **Notice of Occurrence.** Whenever the Insured has information from which the Insured may reasonably conclude that an occurrence covered hereunder involved injuries or damage which, in the event that the Insured should be held liable, is likely to involve this policy, notice shall be sent to the Insurer, as soon as practicable, provided, however, that failure to give notice of any occurrence which at the time of its happening did not appear to involve this policy, but which at a later date would appear to give rise to claims hereunder, shall not prejudice such claims.
5. **Inspection and Audit.** The Insurer shall be permitted but not obligated to inspect the Insured's property and operations at any time. Neither the Insurer's right to make inspections nor the making thereof nor any report thereon shall constitute an undertaking, on behalf of or for the benefit of the Insured or others, to determine or warrant that such property or operations are safe.

The Insurer may examine and audit the Insured's books and records at any time during the policy period and extensions thereof and within three (3) years after the final termination of this policy, as far they relate to the subject matter of this insurance.

6. **Maintenance of Underlying Insurance.** The policy or policies referred to in the "Schedule of Underlying Insurance", and any renewal or replacement thereof, not more restrictive, shall be maintained by the Insured in full effect during the currency of this policy without alteration of terms or conditions except for any reduction of the aggregate limit or limits contained therein solely by payment of claims, failure of the Insured to comply with the foregoing shall not invalidate this policy but in the event of such failure, the Insurer shall only be liable to the same extent as it would have been had the Insured so maintained such policy or policies.
7. **Assistance and Co-operation.** Except as provided in Insuring Agreement II, the Insurer shall not be called upon to assume charge of the settlement or defence of any claim made, suit brought or proceeding instituted against the Insured; but the Insurer shall have the right and shall be given the opportunity to associate with the Insured in the defence and control of any claim, suit or proceeding reasonably likely to involve the Insurer. In such event the Insured and the Insurer shall co-operate fully.
8. **Appeals.** In the event the Insured or the Insured's underlying Insurer(s) elects not to appeal a judgment in excess of the underlying limits, the Insurer may elect to make such appeal at its own cost and expense and shall be liable for the taxable costs and disbursements and interest incidental thereto, but in no event shall the liability of the Insurer, for the Ultimate Net Loss, exceed the amount set forth in the Risk Details for any one occurrence plus the cost and expense of such appeal.
9. **Other Insurance.** If other valid and collectible insurance with any other Insurer is available so the Insured covering a loss also covered hereunder, this insurance shall be excess of, and shall not contribute with such other insurance. Excess insurance over the Limits of Liability expressed in this policy is permitted without prejudice to this insurance and the existence of such insurance shall not reduce any liability under this policy.

10. **Subrogation.** All salvages, recoveries or payment recovered or received subsequent to a loss settlement under this insurance shall be applied as if recovered or received prior to such settlement and all necessary adjustments shall be made between the Insured and the Insurer, provided always that nothing in this clause shall be construed or mean that losses under this insurance are not recoverable until the Insured's Ultimate Net Loss has been finally ascertained. Inasmuch as this policy is "Excess Coverage", the Insured's right of recovery against any person or other entity cannot always be exclusively subrogated to the Insurer, it is therefore understood and agreed that, in case of any payment hereunder, the Insurer shall act in concert with all other interests (including the Insured) concerned, in the exercise of such rights of recovery. The apportioning of any amounts which may be so recovered shall follow the principle that any interests (including the Insured) that shall have paid an amount over and above any payment hereunder, shall first be reimbursed up to the amount paid by them. The Insurer shall then be reimbursed out of any balance then remaining up to the amount paid hereunder. Lastly, the interests (including the Insured) of whom this coverage is excess are entitled to claim the residue, if any. Expense necessary to the recovery of any such amounts shall be apportioned between the interests (including the Insured) concerned, in the ratio of their respective recoveries as finally settled.
11. **Changes.** Notice to or knowledge possessed by any person shall not effect a waiver or change in any part of this policy or stop the Insurer from asserting any rights under the terms of this policy; nor shall the terms of this policy be waived or changed, except by endorsement issued to form a part thereof, signed by an authorized representative of the Insurer.
12. **Assignment.** Assignment of interest under this policy shall not bind the Insurer until its consent is endorsed hereon. If, however, the Insured shall be adjudged bankrupt or insolvent, this policy shall cover the Insured's legal representative as Insured, provided that notice of cancellation addressed to the Insured named in the Risk Details and mailed to the address shown in this policy shall be sufficient notice to effect cancellation of this policy.
13. **Cancellation.** This policy may be cancelled by the Insured by surrender thereof to the Insurer or any of its authorized representatives, or by mailing to the Insurer or any of its a authorized representatives, written notice stating when thereafter such cancellation shall be effective. The policy may be cancelled by the Insurer by mailing to the Insured at the address shown in the Risk Details, written notice status when, not less than ninety (90) days thereafter, fifteen (15) days with respect to cancellation for non-payment of premium, such cancellation shall be effective. Proof of mailing of notice as aforesaid shall be sufficient proof of notice. The time of surrender or the effective date and hour of cancellation stated in the notice shall become the end of the policy period. Delivery of such written notice, either by the Insured or by the Insurer, shall be equivalent to mailing. If the Insured cancels, earned premium shall be computed pro rata. In the event of such cancellation, the earned premium shall in no case be less than the policy minimum premium stated in the Risk Details.
- Premium adjustment may be made at the time cancellation is effected or as soon as practicable thereafter. The cheque of the Insurer or its representative, mailed or delivered, shall be sufficient tender of any refund due the Insured.
- If this policy insures more than one Insured, cancellation may be effected by the first of such Insureds for the account of all Insureds. The notice of cancellation by the Insurer to such first Insured shall be notice to all Insureds. Payment of any unearned premium to such first Insured shall be for the account of all interests in such payment.
14. **Bankruptcy and Insolvency.** In any event of the bankruptcy or insolvency of the Insured or any entity comprising the Insured, the Insurer shall not be relieved thereby of the payment of any claims hereunder because of such bankruptcy or insolvency.
15. **First Named Insured.** The first Named Insured in the Risk Details shall be responsible for payment of all premiums and shall act on behalf of all other Insureds with respect to the giving and receiving of notice of cancellation and the receipt of any return premium shall become payable under this policy.

EXCESS AUTOMOBILE LIABILITY COVERAGE - SPF7

Subject to the limits, special provisions and conditions herein stated and subject, insofar as applicable, to the terms, conditions, general provisions, definitions and exclusions set forth in the first loss policy(ies) as specified in the Schedule of Underlying Insurance, which said terms, conditions, general provisions, definitions and exclusions are by reference incorporated herein, the Excess Insurer agrees to indemnify the Insured under the first loss motor vehicle liability insurance against liability imposed by law upon the Insured for an amount or amounts in excess of the limit(s) of the first loss insurance and the underlying excess insurance for loss or damage arising from the ownership, use or operation of the automobile(s) covered under such first loss insurance and the underlying excess insurance resulting from Bodily Injury to or Death of any Person or Damage to Property.

SPECIAL PROVISIONS

1. the Excess Insurer's Ultimate Net Loss liability shall not exceed the limit as specified in the Risk Details in excess of the limit(s) of the first loss policy, and the underlying excess policy(ies) stated, if any, or such amount as the first loss Insurer and the underlying excess Insurer shall be liable to pay under statute, whichever is the greater.

The words "Ultimate Net Loss" used in this coverage mean the amount payable in settlement of the liability of the Insured after making deductions for all recoveries and for other valid and collectible insurances excepting the first loss and underlying policy(ies) and shall exclude all expenses and costs.

2. The word "costs" used in this coverage means interest accruing after entry of judgement upon that part of the judgement which is within the limit of the Excess Insurer's liability, investigation, adjustment and legal expenses, excluding, however, all office expenses of the Insured, all expenses of salaried employees of the Insured and general retainer fees for counsel normally paid by the Insured.
3. The Excess Insurer agrees to pay costs incurred by or on behalf of the Insured where these costs are not covered by the first loss or underlying excess policy(ies), on the following basis:
 - (a) should any claim or claims become adjustable prior to the commencement of trial for not more than the first loss and underlying excess policy limit(s) then no costs shall be payable by the Excess Insurer;
 - (b) should, however, the amount for which said claim or claims may be so adjustable exceed the first loss and underlying excess policy(ies) limit(s), then the Excess Insurer shall contribute to the costs incurred on behalf of the Insured in the ratio that the Excess Insurer's proportion of the Ultimate Net Loss as finally adjusted bears to the whole amount of such Ultimate Net Loss;
 - (c) in the event that the Insured or the Insurer under the first loss policy(ies) elects not to appeal a judgement in excess of the limit(s) of the first loss and underlying excess policy(ies) the Excess Insurer may elect to conduct such appeal and shall be liable for the taxable costs and interest incidental thereto; but in no event shall the total liability of the Excess Insurer exceed the Limit of Liability as specified in the Risk Details plus the expense of such appeal.
4. All recoveries or payments recovered or received subsequent to a loss settlement under this coverage shall be applied as if recovered or received prior to such settlement and all necessary adjustments shall then be made between the Insured and the Excess Insurer, provided always that nothing in this coverage shall be construed to mean that losses under this coverage are not payable until the Insured's Ultimate Net Loss has finally been ascertained.
5. Liability to pay under this coverage shall not attach unless and until the first loss and underlying excess Insurer(s) shall have admitted liability for the first loss and underlying excess limit(s) or unless and until the Insured has by final judgement been adjudged to pay an amount which exceeds such first loss and underlying excess limit(s) and then only after the first loss and underlying excess Insurer(s) has/have paid or has/have been held liable to pay the full amount of the first loss and underlying excess limit(s).
6. Neither the inclusion of more than one entity in the name of the Insured nor the addition of any additional Insureds under this coverage shall in any way operate to increase the Limit of Liability as specified in the Risk Details.

7. Notwithstanding Statutory Condition 3 (1) contained in the first loss policy the Insured is only required to give the Excess Insurer notice of any accident if the claim or claims possibly arising therefrom appear likely to exceed the first loss insurance, in which case immediate written notice thereof must be given to the Excess Insurer by the Insured.
 8. (a) This Policy may be terminated
 - (i) by the Excess Insurer giving to the Insured thirty days' notice of termination by registered mail, or five days' written notice of termination personally delivered; or
 - (ii) by the Insured at any time on request.
 - (b) Where this Policy is terminated by the Excess Insurer
 - (i) The Excess Insurer shall refund the excess of premium actually paid by the Insured over the pro rata premium for the expired time, but in no event shall the pro rata premium for the expired time be deemed to be less than any minimum retained premium specified; and
 - (ii) the refund shall accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund shall be made as soon as practicable.
 - (c) Where this Policy is terminated by the Insured the Excess Insurer shall refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time, but in no event shall the short rate premium for the expired time be deemed to be less than any minimum retained premium specified.
 - (d) The refund may be made by money, postal or express company money order, or by cheque payable at par.
 - (e) The thirty days mentioned in clause (i) of sub-condition (a) of this condition commences to run on the day following the receipt of the registered letter at the post office to which it is addressed.
 - (f) Nothing in this special provision shall in any way affect the operation of the statutory provision in The Insurance Act providing that where the contract or contracts designated in the excess contract terminates or is terminated, the excess contract is automatically terminated. In the event that this Policy is automatically terminated, the Excess Insurer agrees to refund the excess of premium actually paid over the pro rata premium for the expired term (subject to any minimum retained premium specified) as soon as practicable, but if there is any pro rata premium unpaid the Insured agrees to pay this.
9. Any written notice to the Excess Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Excess Insurer in this province. Written notice may be given to the Insured named in this Policy by letter personally delivered to him or by registered mail addressed to him at his latest post office address notified to the Excess Insurer. In this condition the expression "registered" means registered in or outside Canada.

SPECIFIC RISK ENDORSEMENT – UNITED STATES OF AMERICA

Notwithstanding anything to the contrary contained in this Policy

As far as concerns legal liability arising from any claim

- (i) which is made in any Specified Territory
 - (ii) in respect of which action or litigation is brought in a court of law within any Specified Territory or where action or litigation is brought in a court of law outside such Territory to enforce a judgment therein
- (1) The Underwriters shall not be liable for punitive or exemplary damages
 - (2) The Limits of Indemnity specified in the Schedule are each deemed to be inclusive of all Legal Costs
 - (3) This Policy does not cover any liability for:
 - (a) Bodily Injury or Property Damage directly or indirectly caused by seepage pollution or contamination
 - (b) The cost of removing nullifying or cleaning-up seeping polluting or contaminating substances
 - (c) Fines or penalties

For the purposes of this Endorsement "Specified Territory" shall mean the United States of America and any territory within the jurisdiction thereof.

RADIOACTIVE CONTAMINATION AND EXPLOSIVE NUCLEAR ASSEMBLIES EXCLUSION CLAUSE

This Policy does not cover

- (a) loss or destruction of or damage to any property whatsoever or any loss or expense whatsoever resulting or arising therefrom or any consequential loss
- (b) any legal liability of whatsoever nature

directly or indirectly caused by or contributed to by or arising from

- (i) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel
- (ii) the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof.

NMA1622
04/04/1968

WAR AND CIVIL WAR EXCLUSION CLAUSE

(Approved by Lloyd's Underwriters' Non-Marine Association)

Notwithstanding anything to the contrary contained herein this Policy does not cover injury, loss or damage directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any government or public or local authority.

1/1/38

NMA464 (amended)

CYBER AND DATA EXCLUSION

(for attachment to Canadian Liability forms)

1. Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:
 - 1.1 **CYBER ACT** or **CYBER INCIDENT** including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any **CYBER ACT** or **CYBER INCIDENT**;
 - 1.2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any **DATA**, including any amount pertaining to the value of such **DATA**; or
 - 1.3 complaint, investigation, or proceedings arising directly or indirectly from a breach or alleged breach of the Personal Information Protection and Electronic Documents Act, the Canada Anti-Spam Legislation, any Privacy Act, or any similar Canadian, Provincial or Territorial statute or regulation,regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

Definitions

COMPUTER SYSTEM means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

CYBER ACT means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **COMPUTER SYSTEM**.

CYBER INCIDENT means:

- (a) any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **COMPUTER SYSTEM**; or
- (b) any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **COMPUTER SYSTEM**.

DATA means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **COMPUTER SYSTEM**.

LMA5528A

15 March 2023

COMMUNICABLE DISEASE EXCLUSION**(For use on liability policies)**

1. Notwithstanding any provision to the contrary within this policy, this policy does not cover all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.
2. For the purposes of this endorsement, loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test for a Communicable Disease.
3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 3.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress, damage to human health, human welfare or property damage.

LMA5396

17 April 2020

PRIMARY SUB-LIMIT COVER EXCLUSION (AMENDED)

The indemnity provided by this Insurance will not drop down to provide indemnity in respect of any hazard insured under the underlying insurance which is subject to a sub-limit or other reduced limit of liability.

However, this exclusion does not apply to Tenants Legal Liability and Forest Fire Fighting Expenses scheduled under underlying Commercial General Liability – Policy Number: COM047413432.

PYRITE EXCLUSION

This policy shall not indemnify the Insured for any claims or circumstances arising directly or indirectly or as a consequence of or in any way relating to pyrite or any product or material containing pyrite in any form or quantity.

All other terms and conditions remain unchanged.

PROFESSIONAL INDEMNITY EXCLUSION

This Insurance does not apply to Bodily Injury or Property Damage arising out of the rendering of, or the failure to render, professional services or any error, omission or mistake of a professional nature performed by or on behalf of the Insured.

RIP AND TEAR EXCLUSION

It is agreed that this Policy does not apply to liability

- 1 for the costs of digging out removing replacing any cement or concrete supplied by the Assured
- 2 for any claim for rebuilding costs including any loss or expense consequent upon rebuilding which is due to the failure of cement or concrete to fulfil the purpose for which it was supplied

Subject otherwise to the Terms Conditions Limitations and Exclusions of the Policy.

ENDORSEMENT NO. 1

Policy No.: UMX00639

Issued to: Acadia Construction Inc

Effective: May 1, 2026

NAMED INSURED ENDORSEMENT

It is hereby understood and agreed that the following entities are included as Named Insured on this policy:

- Acadia Construction Inc
- Acadia Industries Inc.
- Acadia Excavating Inc
- KC Holdings Ltd
- Sully Construction Ltd
- Trischuk Holdings Ltd
- KCL Investments Inc
- Timaskaw-Acadia Joint Venture o/b Acadia Construction Inc
- Timaskaw Contracting LP
- Acadia Investments Ltd.
- TNL Holdings Inc.
- 101276408 Sask. Ltd.
- KLP Holdings Ltd.
- Acadia Construction Management Ltd
- Acadia Investments Ltd.
- Heide Construction Ltd.
- Dayne Contracting Ltd.
- Acadia Pumping & Dewatering Ltd.
- Acadia Investments Ltd.
- Integrated Engineering Inc. (Property only)

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED

In witness whereof the Insurer(s) through their representative duly authorized by them for this purpose, have executed and signed this Endorsement.